

Personal appearance and appearances via ZOOM are available.

UPDATED Probate Calendar for Friday, September 18, 2026

9:00 a.m. in Department Paso 2, with Judge Michael C. Kelley (by Michele L. Rowe, Judge Pro Tem) presiding

UPDATED WED. SEPT. 16th at 6 p.m. No further updates will occur due to staff training on Sept. 17th.

No.	Case Number	Case Name	Type of Matter	Probate Notes
<u>The following matters are OFF CALENDAR/ DISMISSED/ TERMINATED or CONTINUED:</u>				
6	22PR-0139	Conservatorship of: Barbara Klein	Petition Second Account Filed 10/09/2025; Cont'd 5/15/26	CONTINUED LIST: <i>The matter is continued to February 5, 2027 at 9:00 a.m. in P2. All additional information is due by January 5, 2027. The following is noted:</i> <i>1. Accounting Schedules:</i> <i>a. Schedule C:</i> <i>i. Clarification is still needed as to who paid the care facility expenses in January- April 2024, June-July 2024, September-October 2024, Sept.-October and Dec. 2024, January 2025, March-April 2025, and June-July 2025. An explanation was not located in the Supplement filed July 9, 2026. There are notes on some of the statements, but it is not clear what they mean without some kind of written explanation.</i>

				<i>b. End of Account. The market value on the Amended Account filed within the Supplement appears to be incorrect. The Court will interlineate the carry value to be the market value on each asset on hand item.</i> <i>2. Bond is recommended to be set at \$53,997.42. This is higher than requested in the Petition, as it includes the \$19,381.38 loan that is an asset of this estate pending repayment. The current bond is \$34,896.40, per the Dec. 17, 2024 order of this Court. Thus, an increase in bond of \$19,101.02 is needed. A OSC re: Bond will be set for February 5, 2027 at 9:00 a.m. in P2.</i> <i>3. Attorney fees. This Court does not have ongoing jurisdiction over the Trust, as 23PR-0107 has been closed after the June 27, 2025 Order. As such, this Court cannot order the Trust to pay fees as requested. It is noted the Petitioner is also the Trustee of the Trust and the Trust is not Court supervised.</i> <i>4. A revised Order is needed.</i> <i>5. The Third Account, for the period of August 15, 2025 to August 14, 2027 is due by October 8, 2027.</i>
9	24PR-0359	In Re: Camila Mazon	Motion Filed 04/23/2026 - For Order Amending Order Approving Compromise of Claim	DENIED LIST: <i>The request to nunc pro tunc the July 22, 2025 order, does not appear appropriate based on the applicable law and facts in this matter.</i> <i>The Court ruled on the underlying Minor's Compromise Petition (Petition), which was filed on October 30, 2024, nearly 8 months and four hearings later, on July 11, 2025. The order was reduced to a</i>

			<i>written order on July 22, 2025 (Order) based on the prayer of the Petition and the numerous hearings discussing allocation of the total represented settlement to this minor of \$999,865.00. The Defendant's attorney assisted in the preparation of the Petition, which omitted necessary information, leading to continuances and eight additional filings totaling over 1,800 pages. The Petition called for an annuity purchase and use of a pooled trust. Unfortunately, the exact allocation of the \$999,865 was not fully disclosed in the original Petition. The allocation of funds, outside of the annuity, was discussed at length due to the numerous omissions in the Petition. The Defendant, now the moving party, was not present at any of those hearings. Once determined over the hearings noted above, the use of a pooled trust account was withdrawn by the Petitioner, replaced by a blocked account and cash payments. On July 11, 2025 at the final of the four hearings to settle the Petition, the Court approved the settlement of \$999,865.00 and ordered \$799,740.86 to an annuity, \$185,125.00 to a blocked account, and \$15,000 to be paid to the minor's mother directly, for ongoing medical expenses. The minor, Camila Mazon, turned 18 on February 4, 2026, rendering the need for a blocked account moot.</i> <i>This Motion advises that when processing the Order, Defendants discovered the annuity purchase cost rose to \$799,990.00. They also discovered other payments they had made to other injured persons came from Camila's \$15,000 cash allocation. The moving party, through this Motion, now asks this Court to approve a smaller settlement to Camila, in the amount of</i>
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				<i>\$994,362.37. This would change the Court's order by \$5,502.63 (\$999,865 to \$994,362.37).</i> <i>A nunc pro tunc order is only applicable to correct a clerical error by placing on the record what was actually decided by the court by incorrectly recorded. (Hamilton vs. Laine (1997) 57Cal.App.4th 885, 891.) It is not used to determine a new order. (Id.)</i> <i>In this matter, the Court ruled on the Petition and Declaration/ Supplements it had before it on July 11, 2025, reduced to writing on July 22, 2025. At that hearing, though the Petition, this Court was tasked with approving the settlement tailored specifically as to Camila Mazon and her injuries. The moving party's arguments that the Court was somehow approving the allocation of the policy limits to all parties, and this is just a reorganization of those policy limits, is unsupported. The entire goal of a Minor's Compromise is to approve a specific amount going to a specific minor based on their injuries. Allocation and policy limits are factors, but the Court is focused on the particular minor in each Petition. This was the approach on this matter, when the Court made the July 22nd order agreeing to the total settlement of \$999,865.00 as always presented via the Petition.</i> <i>The purported unsigned settlement agreement attached as Exhibit B to the Motion is a new agreement. It is not what the Petition requested nor was it presented with this Court for approval.</i>
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				<i>Based on the above, this request cannot be a nunc pro tunc order. The Court cannot correct something that was never presented prior to or at the hearing. Rather, this is a request to modify the settlement to another settlement. The motion is denied.</i>
11	26PR-0146	Conservatorship of: Arabella Lodge	Filed 04/27/2026 - Petition for Appointment of Conservator Filed	CONTINUED LIST; <i>The matter is continued to December 18, 2027 at 9:00 a.m. in P2. All additional material must be filed by November 16, 2027. The following issues are noted:</i> <i>1. Proof of service of Notice of Hearing was not located. Proof of service of Notice is missing on the family and Tri-Counties Regional Center. There is a proof of service in the file dated August 10th, but it does not indicate any Notice of Hearing was served.</i> <i>2. The Tri-Counties Regional Center Report has not been filed.</i> <i>3. A capacity declaration has not yet been filed.</i> <i>4. The Court Investigator has requested a continuance due to the missing information above.</i> <i>5. At the next hearing, the proposed conservatee must appear for the warnings under Probate Code section 1828.</i> <i>6. A proposed Order is needed.</i> <i>7. Proposed letters are needed.</i>
12	26PR-0149	Conservatorship of: Wyatt Akridge	Petition Filed 5/1/26 – Conservatorship – Person	CONTINUED LIST: <i>*UPDATE* The matter is continued to December 18, 2027 at 9:00 a.m. in P2. All additional material must be filed by November 16, 2027. The following issues are noted:</i> <i>1. Proof of service of the Citation was not located.</i>

				2. <i>Proof of service of Notice of Hearing on Tri-Counties Regional Center was not the thirty day period required by Probate Code section 1822.</i> 3. <i>Petition Issues:</i> a. <i>Petition item 1.b. is marked regarding an estate. Is an estate requested? The balance of the Petition does not appear to request the same.</i> 4. <i>The Tri-Counties Regional Center Report has not been filed.</i> 5. <i>The Court Appointed Attorney Report is not recommending the powers to control marriage or social and sexual contacts. Petitioner should be prepared to discuss once all other items are cleared.</i> 6. <i>At the next hearing, the proposed conservatee must appear for the warnings under Probate Code section 1828.</i> 7. <i>A proposed Order is needed.</i>
14	26PR-0155	Guardianship of: Parker Simpson	Petition Filed 5/4/2026 - Guardianship - Person	CONTINUED LIST. *UPDATE* <i>The Petition is continued to January 8, 2027 at 9:00 a.m. in P-2. All additional items must be filed by December 8, 2026. The following is noted:</i> 1. <i>Proof of service of Notice of hearing and service of a copy of the Petition has not been met as required by Probate Code section 1511. Proof of service is needed on the following parties:</i> a. <i>Father, Jason Richard Simpson. Personal service is needed.</i> b. <i>Paternal Grandmother, name unknown, service via mail is needed. If a person's</i>

				<i>location is unknown, a declaration of diligent search is needed pursuant to California Rules of Court, rule 7.52.</i> <i>c. Paternal Grandfather, Richard A. Simpson, service via mail is needed.</i> <i>d. Sibling, Evelyn Velasquez, service via mail is needed. The proof of service of Notice of Hearing filed August 11, 2026 indicates that Evelyn Velasquez was served in care of another person, the Petitioners. It is unclear why notice was not provided directly to the sibling as information in the file indicates she is an adult.</i> <i>e. Sibling, Cameron Velasquez, service via mail is needed. The proof of service of Notice of Hearing filed August 11, 2026 indicates that Cameron Velasquez was served in care of another person, the Petitioners. It is unclear why notice was not provided directly to the sibling as information in the file indicates he is an adult.</i> <i>f. It is unclear if service on the other siblings, Carson Conrow and Logan Conrow is sufficient because their ages are unknown and their addresses were not included in the Petition. See Probate Code section 1460.1 for service on minors. Clarification regarding the ages of the siblings is needed.</i>
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				2. <i>The Petition indicates that the Petitioner Michael DeQuattro is the minor's step-grandfather. No information is provided for the minor's biological maternal grandfather. This information is needed.</i> 3. <i>The Court Investigator's Report is not yet ready. A continuance is needed.</i> 4. <i>The Petition indicates the child may be eligible for tribal enrollment. An ICWA-030 form is needed along with proof of service by the attorney for the Petitioner.</i> 5. <i>Temporary guardianship was granted expiring this date. Temporary letters have not been submitted to be issued. It is recommended the Court terminate the temporary guardianship because it appears unnecessary.</i>
15	26PR-0268	In Re: Pedro Thorne	Petition Filed 7/30/26 - Minor's Compromise	CONTINUED LIST. *UPDATE* <i>The Petition is continued to November 20, 2026 at 9:00 a.m. in P-2. All additional items must be filed by October 23, 2026. It is noted that Petitioner filed an Amended Petition on Sept. 14th citing to this new November 20th date. The following is noted:</i> 1. <i>There is a duplicate page 3 to the Petition included. Each page marks a different box for Item 11b(2). Clarification is needed regarding whether Petitioner does or does not have a claim against the recovery of the claimant.</i> 2. <i>More information is needed regarding Item 12b(5)(b) of the Petition. The Court requests documentation establishing the amount of the liens and the agreed upon reductions.</i> 3. <i>Additional information is needed as to the costs charged, specifically the "eFiling Platform</i>

				<i>Fees” of \$225. The fees appear to be excessive based on the limited filings in the case. Clarification is needed.</i> 4. <i>Item 17 of the Petition should be reviewed for accuracy. Item 17a(2) indicates that the Petitioner and the attorney do not have an agreement for services, but an agreement is included as Attachment 17a. As such, it appears the incorrect box has been checked.</i> 5. <i>Item 17c of the Petition should be reviewed for accuracy. Item 17c indicates that the attorney has not received attorney’s fees in addition to that requested in this Petition. However, Attachment 11(b)3 indicates that counsel has received \$8,333.33 as fees for the Petitioner’s settlement. Clarification is needed.</i> 6. <i>Item 23 of the Petition is incomplete. It is unclear if all the intended attachments are included.</i> 7. <i>At the next hearing, the minor and Petitioner should appear via Zoom or in person for examination under California Rules of Court, rule 7.952.</i>
<u>APPROVED LIST</u>				
1	15PR-0403	In Re: The Swanson Family Trust	Petition Filed 04/28/2026 - Amended Petition for Order Approving Final Account of Trustee	APPROVED LIST: <i>The matter is approved, subject to the following modifications:</i> 1. <i>The Amended Petition filed on April 28, 2026 does not indicate that it is an amendment to a prior pleading, but rather it indicates it is a fully amended Petition. Nevertheless, none of the Exhibits Referenced and Incorporated are located as part of this Amended Petition.</i>

				<i>Rather, they all appear to be attached to the original Petition, which was filed on March 24, 2025. It is recommended the Court deem the April 28th Amended Petition an Amendment to the original pleading, dated March 24, 2025, so as to incorporate the exhibits which are not included in the April 28th filing.</i> <i>2. Per the terms of the First Amendment, the distribution under section A.7, indicates that the Trust terminates on the death of the beneficiary, Kenneth R. Swanson. At that time, the estate was to be distributed equally between the settlor's children. It is understood two of the Settlor's children died after the beneficiary died, but before distribution occurred. In fact, those two parties appear to have died after the first order was issued on the original Petition. Based on the terms of the Trust, it seems distribution of the Trust assets would pass equally to those five children, as they survived the termination triggering event in the Trust terms: the death of Kenneth R. Swanson. As such, it is recommended the Court distribute assets to 20% Julie Ann Harris, 20% Dennis Swanson, 20% Kenneth Jerry Swanson Bokano (Son of the beneficiary), 20% to the estate of Duane Swanson, 20% to the estate of Randy Swanson.</i> <i>3. It is understood for notice purposes, Julie Harris, Kenneth Jerry Swanson Bokano, and Dennis Swanson are the successors in interest for Duane's estate and Randy's estate.</i> <i>4. A revised order is needed.</i>
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4-5	20PR-0216	Conservatorship of: Jeffrey Lewelling	(4) Petition Filed 03/18/2026 - First Account Current and Report of Trustee and Petition for Allowance of Attorney Fees (5) Hearing - Filed 05/12/2026 - Special Appearance and Objection to Request for Disgorgement of Attorney's Fees	APPROVED LIST: <i>The matter is recommended for approval with the following changes:</i> <i>1. The paralegal fee charged in Exhibit D exceeds community standards. A reduction of \$551.00 in the attorney fee request is recommended, representing the paralegal rate reduction. The July 31, 2026 Declaration is silent on this issue and it is presumed the recommendation is acceptable. A total fee of \$4,334.50 plus costs of 440.95 is recommended (reduced from \$4,885.50).</i> <i>2. Bond. The decreased bond of \$162,849.07 is recommended as prayed. An OSC re: reduction in bond is not recommended due to calendar constraints, but the new bond must be filed by the next account due date listed below.</i> <i>3. There is a request to disgorge funds from a third party that the Petitioner paid with conservatorship funds. Authority for this Court to take such actions was not provided. An Objection to the disgorgement was filed by the third party. It is not recommended the Court order the disgorgement as part of this account. A review of the invoices presented with the Petition has been completed. Based on the amount paid and what appears to be a lack of accurate advice on the issue from the prior attorney, it is recommended the Court allow payment, but warn the now, Court created Special Need Trust Trustee to not pay fees prior to Court order in the future. This should resolve the Objection.</i>
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				4. <i>The Second Account and Report, for the period of Sept. 20, 2024 to September 19, 2026 is due by December 19, 2026.</i>
7	22PR-0139	Conservatorship of: Barbara Klein	Petition First Account Filed 02/19/2025; Cont'd 7/11/25, 1/23/26 and 5/15/26	APPROVED LIST: <i>The matter is recommended for approval, as amended by the Supplement filed on July 9, 2026 with the Amended Account, subject to Petitioner providing information on the status of the joint account at Mechanic's Bank still held in joint tenancy with Jeannie Thorton and efforts made to obtain any funds that belong to the conservatee. The Supplement indicates no assets have been transferred to the estate. A plan is needed and will be addressed as to progress at the next hearing, which is February 5, 2027 at 9:00 a.m. in P2 to address the issues in the Amended Second Account remaining.</i>
<u>HEARING LIST</u>				
2	18PR-0028	Guardianship of: Cherysh Kimzey	Status Conference	HEARING LIST: <i>Zoom or personal appearance is needed.</i>
3	19PR-0059	Estate of: Debra Jones	OSC re: Dismissal; Cont'd 6/26/26	HEARING LIST: <i>*UPDATE* Zoom or personal appearance is required. The following issue is noted: The Declaration filed June 2, 2026 indicates that counsel for the Administrator anticipated the terms of the settlement to be completed by September 1, 2026. An updated Declaration filed on Sept. 16, 2026 indicates there is a delay and the matter should remain open, but the period is not clear. Appearance is required to discuss the period.</i>
8	23PR-0247	In Re: John A. Alexander Trust Dated October 25, 1993	Petition Filed 04/28/2026 - Orders Suspending Power of Trustee, Appointing Temp. Trustee and	HEARING LIST: <i>Zoom or personal appearance is needed. An Objection has been filed.</i>

			Freezing Trust Accounts.	
10	25PR-0221	Conservatorship of: Evelyn Cunningham	Filed 7/11/2025 - Conservatorship PERSON; Cont'd 10/27/26, 2/27/26 & 7/10/26	HEARING LIST: *UPDATE* Zoom or personal appearance is needed. An Amended Petition was filed on April 17, 2026. The following is noted: 1. Proof of service of the Citation does not appear to be for the Amended Petition, which was filed on April 17, 2026. The citation filed on May 18th cites the old February 27th hearing date, which was associated with the prior Petition version. A new citation was never issued by the Court for this date on the Amended Petition. 2. The Court Investigator is still unable to complete her report due to missing paperwork in the file. The Court cannot proceed until the parties meet with the Court Investigator. The parties should be prepared to discuss why this has not occurred over a year from the original filing date. 3. The Court Appointed Attorney Report has not been provided. 4. Points and Authorities are needed on the request to remove or terminate the power of one agent under the power of attorney. See Probate Code section 4206 for application. It is unclear what authority the Court has to take the action requested. 5. The proposed conservatee must appear under Probate Code section 1825 for the warnings under Probate Code section 1828. 6. Bond of \$277,394.90 appears acceptable based on the personal property alleged. The Sept. 16th Supplement is noted. 7. An Objection has been filed.

13	26PR-0154	In Re: Liv Petronella	Petition Filed 05/05/2026 - Minor's Compromise	HEARING LIST: Zoom or personal appearance is required. The following issues are noted: 1. Clarification is needed regarding Attachment 13a of the Petition. The supporting statement provided as Attachment 13g does not match the alleged reductions accepted by the Spine and Orthopedic Center. 2. The minor and Petitioner should appear via Zoom or in person for examination under California Rules of Court, rule 7.952. 3. If the matter is approved, the Court will also set an OSC re: Proof of Deposit for October 30, 2026 at 9:01a.m. in P-2.
16	23PR-0247	In Re: John A. Alexander Trust Dated October 25, 1993	Trial Setting Conference/CMC	HEARING LIST: Zoom or personal appearance is required. An update is needed as to the status of the matter and trial setting. Related to No. 8 on calendar.

Subject to the rules below, attorneys and parties to a case may now contact the Probate Research Department using the following email: probate@slo.courts.ca.gov.

The following rules apply to use of the foregoing email address. An email that does not comply with the requirements below may not be reviewed.

1. Emails must be related only to a Probate Note (past or present).
 - a. The following exceptions apply: (1) A party or attorney has specifically received an email from the Court on an issue requiring response; or (2) the Court directed an email be sent to the Probate Research Department (Examples: Solicited email from a bench officer or a Court Attorney or information ordered to be provided via email by bench officer in Court).
2. **Emails must contain:**
 - a. **Subject Line: Hearing Date, Time, Department, Case Number and Case Name (Example: 10/1/19, 9:00, D99, 18PR0000, Estate of John Smith).**
 - b. **First Line of Email Body: Case Number, Case Name, and Description of the pleading on the calendar.**

- c. **Reason for Request.**
- d. **No Attachments.**

3. Further, email inquiries must conform to the following guidelines:

- a. Questions must be from an attorney or party on the case.
- b. The Court's response after the initial reply is limited to one email message per calendar matter, per hearing.
- c. The body of the email (Reason for Request under item 2.c.) is limited to (5) lines to each deficiency or issue.
- d. Emails may only inquire into clarifications regarding the Probate Note. This includes clarifying language, code sections, court rules and policies related to the Probate Note. Disputes regarding requirements or issues raised in the Probate Note may not be made via email.
- e. Emails advising the Court of possible oversights may be sent.
- f. **Continuances may not be requested via the probate email address.**

4. This email procedure is NOT to be utilized for:

- a. Any requests for legal advice (including, but not limited to, how to clear the Probate Note), case management, and/or a recommendation for an attorney.
- b. Confirmation of documents received by the Court. Please refer to the conformed copy of your filed document to confirm the Court's receipt. If you have not received a conformed copy of your document, please contact the Civil Clerk's Office.
- c. Confirmation that documents have been reviewed.

5. Response Time. All correspondence will be addressed on a priority basis according to the hearing date. The Probate Research Department will make every effort to respond within two Court days of receipt of the email.